IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.140

C.P.(CAA)/47(AHM)2022 in C.A.(CAA)/39(AHM)2022

Proceedings under Section 230-232

IN THE MATTER OF:

Power Build Pvt Ltd **.....Applicant**

Order delivered on: 13/02/2023

Coram:

Dr. Madan B. Gosavi, Hon'ble Member(J)
Mr.Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr.Ravi Pahwa, Advocate, on behalf of Thakkar & Pahwa, Advocates.

For the Respondent :

ORDER

We put this matter for clarification on some points from the petitioner.

The present petition was heard and reserved for the orders. However, while perusing the records, it is noted that in the application no documents are placed as regards to the Registration of Transferor Company under the Mauritius Companies Act, 2001. Further, the relevant notification / circulation under the Mauritius Law as regards to the merger of company with another company outside the jurisdiction of Mauritius for required compliances as stated in the application is also not placed on record. The latest Financial Statement of the Transferor Company is also not on record.

We direct the petitioner to file clarificatory affidavit within a week.

List the matter on 13.03.2023

-SD-
KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-
DR. MADAN B. GOSAVI
MEMBER (JUDICIAL)

Sudha